

19STCV30200 19STCV30200

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 19STCV30200 Hearing Date: July 10, 2026 Dept: P

DONNOVAN LEWERY v. CLUB DB

LOUNGE, ET AL.

CASE NO.: 19STCV30200

HEARING: 07/10/2026 @ 9:30 AM

#14

TENTATIVE ORDER

Counsel Mansfield Collins's motion to be relieved as
counsel for Defendant Club DB Lounge is GRANTED.

Moving party to give notice.

Counsel Mansfield Collins (Counsel) moves to be relieved as
counsel for Defendant Club DB Lounge (Defendant).

Background

On August 26, 2019, Plaintiff Donovan Lewery (Plaintiff) filed
this action against Defendants Club DB Lounge, Hayk Gevorkyan, Frontline
Protection, Inc., and Does 1 through 25 for negligent hiring, retention, and
supervision, premises liability, assault, battery, and intentional infliction
of emotional distress.

Following a jury trial, a judgment on special verdict was

entered in favor of Plaintiff and against Defendant Downey Billiards LLC dba Club DB Lounge.

Legal Standard

“The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: ¶ 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; ¶ 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.)

California Rules of Court, rule 3.1362 requires that the following be submitted in support of an attorney's motion to be relieved as counsel pursuant Code of Civil

Procedure section 284, subd. (2): (1) a notice of motion and motion directed to the client (Form MC-051); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subd. (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subd. (1) (Form MC-052); (3) a proof of service evidencing service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (Form MC-053). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (d), (e).)

Discussion

Counsel moves to be relieved as counsel for Defendant.

Here, in compliance with California Rules of Court, rule 3.1362, Counsel submits a notice of motion and motion on Form MC-051 directed to Defendant. Counsel also submits a declaration on Form MC-052 demonstrating good cause to be relieved as counsel for Defendant. Specifically, Counsel states that “[t]he services covered in [his] retainer agreement have been concluded, [he] ha[s] been discharged.” (Collins Decl., ¶ 2.) Counsel provides a proposed order on Form MC-053 and proof of service on Defendant. Therefore, the Court finds that Counsel has complied with the requirements under California Rules of Court, rule 3.1362.

Accordingly, Counsel's motion to be relieved as counsel for Defendant is GRANTED. This Order will take effect upon the filing of proof of service of the signed order upon the client and on all parties that have appeared in the case.